

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARINE TRANSPORT LOGISTICS, INC., *Complainant*

v.

CMA CGM, S.A., *Respondent*.

DOCKET NO. 22-23

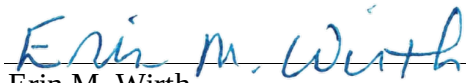
Served: July 7, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER TO FILE A JOINT STATUS REPORT

Pursuant to the revised schedule included in the March 28, 2023, order on Respondent's letter of request and extension of time ("Order"), discovery would have been completed in this proceeding in June and briefing would begin this month. However, on April 7, 2023, Respondent appealed as of right the March 28, 2023, Order pursuant to 46 C.F.R. § 502.150(d). That rule is silent regarding whether the appeal otherwise stays the proceeding before the undersigned and the parties have not requested a stay. Typically, interlocutory appeals do not operate as a stay of the proceeding before the presiding officer. 46 C.F.R. § 502.221(d). However, given the scope of discovery at issue in the appeal, a stay may be appropriate.

The parties are hereby **ORDERED** to file a joint status report by July 25, 2023, describing the status of discovery and their positions on whether a stay of the proceeding before the undersigned is appropriate.


Erin M. Wirth
Chief Administrative Law Judge